

25NNCV07648 25NNCV07648

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Case Number: 25NNCV07648 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION NAME

Hearing Date: 06/26/26

CASE NO./NAME: 25NNCV07648/CARMEN LOWTHER V.

BELLASINO VILLAS HOMEOWNERS ASSOCATION, ET AL.

Moving Parties: Defendants Howard Boles and Susanna

Shamim

Responding Party: Plaintiff Carmen Lowther

Notice: Sufficient

Ruling: The

Court SUSTAINS Defendants

Howard Boles and Susanna Shamim's demurrer with 20 days leave to amend.

The Court DENIES

the motion to reclassify.

Moving Parties

to provide notice of this order.

BACKGROUND

This is a homeowners association dispute. On October 28, 2025, Plaintiff Carmen Lowther filed this action against Defendants Bellasino Villas Homeowners Association, Howard Boles, Sylvia Alston, Susanna Shamim (erroneously sued as Susanna Shamin), and Does 1 to 20, alleging causes of action for breach of CC&Rs, breach of equitable servitudes, breach of fiduciary duty, intentional infliction of emotional distress, and declaratory relief. On February 17, 2026, Plaintiff dismissed the Second and Fifth Causes of Action for breach of equitable servitudes and declaratory relief without prejudice.

Defendants Howard Boles and Susanna Shamim (collectively, Moving Parties) demur to the Fourth Cause of Action for intentional infliction of emotional distress claim and move to reclassify this case as a limited action. Plaintiff filed an opposition on June 12, 2026. Moving Parties replied to Plaintiff's opposition on June 17, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.) Before filing a demurrer, demurring party is also required to meet and confer with the party who filed the pleading demurred to for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (See Code Civ. Proc., § 430.41.)

DISCUSSION

Intentional Infliction of Emotional Distress

To state a cause of action for intentional infliction of emotional distress (IIED), the plaintiff must allege facts demonstrating, “(1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress. Additionally, [i]t must be conduct directed at the plaintiff, or occur in the presence of the plaintiff of whom the defendant is aware.” (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273 (Berry), internal quotation marks and citations omitted, italics in original.) “Whether a defendant’s conduct can reasonably be found to be outrageous is a question of law that must initially be determined by the court; if reasonable persons may differ, it is for the jury to determine whether the conduct was, in fact, outrageous. [Citation.]” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 534; but see Berry, supra, 90 Cal.App.5th at p. 1273 [“[W]hether conduct is ‘outrageous’ is usually a question of fact.’ [Citation]”].)

Moving Parties demur to Plaintiff’s IIED

claim on the grounds that Plaintiff does not state sufficient facts for such a claim and fails to allege any conduct that can be reasonably regarded as extreme and outrageous. Moving Parties contend that the alleged conduct arising from a single incident amounts to trivialities, insults, and threats that courts have consistently determined are not extreme and outrageous. Moving Parties contend that Boles’ alleged conduct of saying that he could “take [plaintiff] right now” or use of vulgar language is vague and inactionable and constitutes mere indignities or insults. Moving Parties also contend that Plaintiff does not allege facts showing that Shamim intended to or was going to slap Plaintiff.

In opposition, Plaintiff contends to

have adequately pled a cause of action for IIED by describing Moving Parties’ extreme and outrageous conduct that caused Plaintiff severe emotional distress but also states that Plaintiff can provide additional conduct and context if necessary because their conduct is not limited to what is described in the Complaint. Plaintiff contends Moving Parties are members of the Board of Directors for Plaintiff’s homeowners association and therefore owed Plaintiff various fiduciary duties, which makes Plaintiff more susceptible to emotional distress from Moving Parties’ conduct. Plaintiff contends Moving Parties made physical threats in front of other association members which in one case

required a third party to intervene to prevent a physical altercation.

Plaintiff contends to be receiving treatment by a psychologist, dermatologist, and three allergists, and contends to have spent thousands of dollars on treatment to date.

The Court finds the Complaint fails to allege sufficient facts to state a cause of action for IIED. The extent of Plaintiff's allegations are that Shamim said she wanted to slap Plaintiff as she moved toward Plaintiff until a neighbor intervened, Boles told Plaintiff he "could take [her] right now," and that Defendants called Plaintiff a "bitch" in front of other homeowners and vendors. (Compl., ¶¶ 16, 39.) Moving Parties' actions at most amount to insults, threats, and indignities, which are insufficient for purposes of IIED. "Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1051, internal quotation marks and citation omitted.) The Complaint is otherwise devoid of allegations that demonstrate extreme and outrageous conduct to support Plaintiff's IIED claim.

Accordingly, the Court SUSTAINS Moving Parties' demurrer to the Fourth Cause of Action for intentional infliction of emotional distress with leave to amend.

Reclassification

Moving parties also contend the amount in controversy is well below the \$35,000 threshold for limited matters and asks the Court to reclassify this matter as a limited action.

In opposition, Plaintiff contends the motion to reclassify should be denied because a verdict over the jurisdictional minimum is obtainable.

The Court finds the motion to reclassify unavailing. Given that the Court has sustained the demurrer with leave to amend, Plaintiff may be able to adequately allege facts stating a claim for IIED and thereby satisfy the \$35,000 threshold for unlimited civil claims. (See Code Civ. Proc., § 86.)

CONCLUSION AND

ORDER

The

Court SUSTAINS Defendants

Howard Boles and Susanna Shamim's demurrer with 20 days' leave to amend.

The Court DENIES the motion to reclassify.

Moving Parties to provide notice of this order.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court